THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2012-53

Being a By-law to update the Municipality's Policy on the use of a Temporary Residence During Construction of a Permanent Residence.

WHEREAS from time to time the Municipality receives an Application for Residential Building Permits with a request by the Applicant for permission to use a structure on the premises as a temporary residence; and

AND WHEREAS the purpose of this By-law is to update the Municipality's Policy in this regard.

BE IT ENACTED as a By-law of the Corporation of the Township of Nipissing as follows:

1. Temporary Use Policy

   That this Municipality adopts the "Temporary Residence" Policy set out in Schedule "A" attached.

2. Letter to the Applicant

   If an Applicant for a Building Permit also requests permission for a Temporary Residence during construction, the Municipality and the Applicant shall sign a letter of understanding which shall be in the general form of Schedule "B" attached.

3. By-law 2011-42 is hereby repealed.

4. The treasurer shall, at the time when any amount is borrowed under this by-law ensure that the lender is or has been furnished with a certified copy of this by-law, (a certified copy of the resolution mentioned in section 2 determining the lender,) if applicable, and a statement showing the nature and amount of the estimated revenues for the current year and also showing the total of any other amounts borrowed from any and all sources under authority of section 407 of the *Municipal Act* that have not been repaid.

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 11th DAY OF DECEMBER 2012.

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

Pat Haufe, Mayor

Charles Barton, CAO-Clerk-Deputy Treasurer

Schedule "A"
To By-Law Number 2012-53

Township of NIPISSING
"Life the way it should be" ESTABLISHED 1888

TOWNSHIP OF NIPISSING POLICY			
Effective Date: December 11, 2012	Section: Building/Zoning		
Title: **Temporary Use of Trailer as Residence**			
Approved By: Pat Haufe Mayor	Signature:	Page: 1 of 1	

Purpose:

To provide a guideline for the use of a trailer/cottage as a Temporary Residence during construction of a Permanent Residence.

Scope:

Township of Nipissing.

Policy:

As the use of trailers/cottages as a Temporary Residence during the construction of a Permanent Residence is not permitted under the Zoning By-Law, a request may be submitted to allow the temporary use.

The following conditions must be met:

1. A $5,000.00 Letter of Credit shall be deposited with the Municipality. This is to guarantee that the trailer/cottage will be removed and not used as a residence after the occurrence of the first of the following events:
    a. 30 days after the CBO confirms that the Permanent Residence is ready for occupancy;
    b. 30 days after occupancy of the Permanent Residence;
    c. In any event such use of the trailer/cottage as a Temporary Residence is to terminate on a date specified at the time of issuance of the Building Permit.
2. That the form of the letter shall be prior approved by the CAO-Clerk.

Failure to comply with these conditions will result in the Letter of Credit being cashed and the monies therefrom shall be used by the Township to proceed with legal action to have the trailer/cottage removed.

Attached as Schedule "B" is a sample letter as prepared by the Township Solicitor to be used as a guide when dealing with these requests.

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The Corporation of the Township of Nipissing
45 Beatty Street
Nipissing ON P0H 1W0
Telephone 705-724-2144 Fax 705-724-5385
www.nipissingtownship.com

Schedule "B"
To By-law Number 2012-53

Date

Applicant Name
Applicant Address

Re: Building Permit
Location – "legal description"
Temporary Trailer Residence

Dear Applicant:

1. **Your Application**

You have made an Application for a Building Permit for construction of a Permanent Residence on the above lot.

2. **Your Request**

In your Application for a Building Permit you also requested permission to make use of a trailer/cottage to be your Temporary Residence while the new Permanent Residence is under construction.

3. **Zoning By-law**

This is not a permitted use under the Township's Zoning By-law for your area.

4. **Municipal Accommodation**

To assist you, the Municipality will not take issue with your use of a trailer/cottage as a Temporary Residence during construction subject to the following conditions:

a) **Building Permit**

That your proposed new construction is approved for the issuance of a Building Permit.

b) **Letter of Credit**

That you deposit with the Municipality a $5,000.00 Letter of Credit (to be prepared on the Municipal form) to guarantee that the Temporary trailer/cottage Residence will be removed and not used as a residence after the occurrence of the first of the following events:

i) **Ready for Occupancy** – 30 days after the CBO confirms that the Permanent Residence is ready for occupancy;

ii) **Actual Occupation** – 30 days after you take occupancy of the Permanent Residence;

iii) **Termination** – In any event this Temporary Residence is to be terminated on December 31, in the year that the Building Permit was issued unless this time is extended in writing by the Chief Building Official.

c) **Cashing the Letter of Credit**

Failure to comply with these conditions, your Letter of Credit will be cashed and the Municipality will use this money to take legal proceedings to have your Temporary Residence removed.

Any costs incurred by the Township in this process will be taken in the amount of the Letter of Credit and will be a debt to you and assessed against your property in a like manner such as taxes.

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5. **Acknowledgment**

Would you please acknowledge receipt of a duplicate copy of this letter and return it to the Municipality together with a Bank Letter of Credit in favour of the Township of Nipissing.

Yours truly,

Charles Barton
CAO-Clerk

Confirmation

I, the undersigned, hereby confirm that I have read and understand the above conditions by which a Temporary Use Residence will be permitted while my Permanent Residence is under construction.

_____ _____

Date Name